

24CHCV03204 24CHCV03204

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Case Number: 24CHCV03204 Hearing Date: September 2, 2026 Dept: F49

Dept. F49

Date: 9/2/26

Case Name: Michael R. Shaar, Trustee of the Michael R.

Shaar Separate Property Trust vs. Rocio A. Flamenco; Mathew Flamenco; and

Does 1-3

Case No. 24CHCV03204

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 2, 2026

MOTION TO COMPEL RESPONSES

TO FORM INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03204

Motion filed: 3/27/26

MOVING PARTY: Plaintiff Michael R. Shaar, Trustee of
the Michael R. Shaar Separate Property Trust

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Rocio A. Flamenco to respond to Plaintiff's Form Interrogatories – General; and awarding monetary sanctions in the amount of \$320.00.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from a landlord-tenant dispute. On September 5, 2024, Plaintiff Michael R. Shaar, Trustee of the Michael R. Shaar Separate Property Trust, ("Plaintiff" or "Shaar") filed the Complaint against Defendants Rocio A. Flamenco ("Rocio"), Matthew Flamenco ("Matthew"), and Does 1 through 50, alleging two causes of action: (1) Breach of Lease & Damages pursuant to Civil Code, and (2) Common Counts. Subsequently, Rocio filed her Answer to the Complaint on October 3, 2024.

On October 3, 2024, Rocio filed a Cross-Complaint in pro per against Plaintiff, alleging breach of contract and common counts. On January 9, 2025, the Court granted Plaintiff's special motion to strike the Cross-Complaint. The Cross-Complaint was subsequently dismissed on January 10, 2025.

On March 27, 2026, Plaintiff filed the instant motion to compel Rocio to respond to Plaintiff's Form Interrogatories – General (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A.
Motion to Compel Responses to Form

Interrogatories

"A defendant may propound interrogatories to a party to the action without leave of court at any time." (Code Civ. Proc. § 2030.020, subd. (a).) "Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party." (§ 2030.260, subd. (a).)

If a party fails to timely serve responses to interrogatories, the propounding party may move for an order compelling response. (Code Civ. Proc. § 2030.290, subd. (b).)

A party who fails to timely respond to interrogatories waives "any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010)." (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve the party from that waiver if the party has subsequently served a response that substantially complies with the statute and the failure to serve a timely response was due to mistake, inadvertence, or excusable neglect. (Ibid.)

Plaintiff's counsel attests that Plaintiff served his Form Interrogatories – General on Rocio on February 11, 2026 via express mail at her address of record. (Zakari Decl., ¶ 4.) The interrogatories are attached to the declaration of Plaintiff's counsel, and the proof of service confirms that they were served by express mail on February 11, 2026. (Id., Exh. A.) Responses were accordingly due on March 17, 2026. (Code Civ. Proc., §§ 1013, 2030.260.) Plaintiff's counsel attests that, as of the filing of the Motion, his office had received neither responses to the interrogatories nor any communication from Rocio requesting an extension of time to respond. (Zakari Decl., ¶ 5.)

Based on the foregoing, the Court finds that Rocio has failed to serve timely responses to Plaintiff's Form Interrogatories – General, thereby waiving any objections to those interrogatories, including those based on privilege or work product.

Rocio has not opposed the Motion or moved separately for relief from the waiver of objection. Further, there is no indication that Rocio has subsequently served responses prior to the hearing on the Motion. The Court

thus finds that relief from waiver under Code of Civil Procedure section 2030.290, subdivision (a) is unavailable.

Accordingly, the Court GRANTS the Motion.

B.

Monetary Sanctions

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290(c)).

Code of Civil Procedure section 2023.030

authorizes the Court to impose monetary sanctions against any party, person, or attorney who engages in conduct that constitutes a misuse of the discovery process. Misuses of the discovery process include failing to respond to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) Further, the Court may award sanctions “in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed[] ... or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

Plaintiff

requests monetary sanctions against Rocio in the amount of \$320.00, calculated as 0.4 hours spent preparing the Motion, at an hourly rate of \$650.00, plus \$60 in filing fees. (Zakari Decl., ¶ 6.)

Given that Rocio

has not served responses to the interrogatories or filed an opposition providing good cause for non-response, the Court finds sanctions appropriate. The Court finds the time expended on the Motion to be reasonable. However, Plaintiff’s counsel provides no facts justifying the hourly rate of \$650. The Court accordingly finds the rate to be unreasonable and exercises its discretion to reduce the rate to \$300 per hour based on the Court’s knowledge of prevailing rates for matters of this type and complexity. The Court finds the total and reasonable attorney fees and costs in connection with preparation of the Motion to be \$180, calculated as 0.4 hours at a rate of \$300, plus the \$60 filing fee.

Plaintiff's

request for monetary sanctions is thus GRANTED IN PART.

CONCLUSION

The Court GRANTS the motion to compel Defendant Rocio A.

Flamenco to respond to Plaintiff's Form Interrogatories – General, filed by

Plaintiff Michael R. Shaar, Trustee of the Michael R. Shaar Separate Property

Trust. Defendant Rocio A. Flamenco is

ordered to serve verified responses, without objection, to Plaintiff's Form Interrogatories – General within 30 days.

Plaintiff's

request for sanctions is GRANTED IN PART. Defendant

Rocio A. Flamenco is ordered to pay \$180.00 to Plaintiff's counsel within 30 days.

Moving party to give notice.

MOTION TO DEEM

MATTERS ADMITTED; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV03204

Motion filed: 3/27/26

MOVING PARTY: Plaintiff Michael R. Shaar, Trustee of

the Michael R. Shaar Separate Property Trust

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court deeming

matters in Plaintiff's Requests for Admissions to Defendant Rocio A. Flamenco,

Set One admitted; and awarding monetary sanctions in the amount of \$320.00.

TENTATIVE RULING: The motion is GRANTED. The request

for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from a landlord-tenant dispute. On September 5, 2024, Plaintiff Michael R. Shaar, Trustee of the Michael R. Shaar Separate Property Trust, ("Plaintiff" or "Shaar") filed the Complaint against Defendants Rocio A. Flamenco ("Rocio"), Matthew Flamenco ("Matthew"), and Does 1 through 50, alleging two causes of action: (1) Breach of Lease & Damages pursuant to Civil Code, and (2) Common Counts. Subsequently, Rocio filed her Answer to the Complaint on October 3, 2024.

On October 3, 2024, Rocio filed a Cross-Complaint in pro per against Plaintiff, alleging breach of contract and common counts. On January 9, 2025, the Court granted Plaintiff's special motion to strike the Cross-Complaint. The Cross-Complaint was subsequently dismissed on January 10, 2025.

On March 27, 2026, Plaintiff filed the instant motion for an order deeming the truth of matters specified in Plaintiff's Requests for Admissions to Defendant Rocio A. Flamenco, Set One (the "Motion").

No opposition or reply papers have been filed.

ANALYSIS

A.

Motion to Deem Matters Admitted

"A defendant may make requests for admission by a party without leave of court at any time." (Code Civ. Proc. § 2033.020, subd. (a).) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party." (§ 2033.250, subd. (a).)

If a party fails to serve timely responses to requests for admission, the party to whom the requests are directed waives any objection to the requests, and the requesting party may

move for an order that the genuineness of any documents and the truth of any matters specified be deemed admitted. (Code Civ. Proc. § 2033.280, subds. (a), (b).) Unless the court “finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220,” the court must grant the motion. (§ 2033.280, subd. (c).)

The Court may, on motion, relieve a party of the waiver of objection if the party subsequently serves a response that substantially complies with the statutory requirements and the failure to serve a timely response “was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2033.280, subd. (a).)

Plaintiff’s counsel attests that Plaintiff served his Requests for Admissions, Set One to Rocio on February 11, 2026 via express mail at her address of record. (Zakari Decl., ¶ 4.) The requests are attached to the declaration of Plaintiff’s counsel, and the proof of service confirms that they were served by express mail on February 11, 2026. (Id., Exh. A.) Responses were accordingly due on March 17, 2026. (Code Civ. Proc., §§ 1013, 2030.260.) Plaintiff’s counsel attests that, as of the filing of the Motion, his office had received neither responses to the requests nor any communication from Rocio requesting an extension of time to respond. (Zakari Decl., ¶ 5.)

Based on the foregoing, the Court finds that Rocio has failed to serve timely responses to the requests, thereby waiving any objections.

Rocio has not opposed the Motion or moved separately for relief from the waiver of objection. Further, there is no indication that Rocio has subsequently served substantially compliant responses prior to the hearing on the Motion.

The Court accordingly GRANTS the Motion.

B.

Monetary Sanctions

“It is mandatory that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [filing a] motion.” (Code Civ. Proc., § 2033.280, subd. (c).) Even when no opposition to a motion is filed, California

Rules of Court, rule 3.1348, subdivision (a) permits the Court to award sanctions pursuant to the Discovery Act in favor of a party who files a motion to compel discovery.

Sanctions under these circumstances are mandatory.

Plaintiff

requests monetary sanctions against Rocio in the amount of \$320.00, calculated as 0.4 hours spent preparing the Motion, at an hourly rate of \$650.00, plus \$60 in filing fees. (Zakari Decl., ¶ 6.)

The Court

finds the time expended on the Motion to be reasonable. However, Plaintiff's counsel provides no facts justifying the hourly rate of \$650. The Court accordingly finds the rate to be unreasonable and exercises its discretion to reduce the rate to \$300 per hour based on the Court's knowledge of prevailing rates for matters of this type and complexity. The Court finds the total and reasonable attorney fees and costs in connection with preparation of the Motion to be \$180, calculated as 0.4 hours at a rate of \$300, plus the \$60 filing fee.

Plaintiff's

request for monetary sanctions is thus GRANTED IN PART.

CONCLUSION

The Court GRANTS Plaintiff's motion. The matters specified in Plaintiff's Requests for Admissions to Defendant Rocio A. Flamenco, Set One, are deemed admitted.

The

request for sanctions is GRANTED IN PART. Defendant Rocio A. Flamenco is ordered to pay \$180.00 to Plaintiff's counsel within 30 days.

Moving party to give notice.